

FREEMAN, SR. v SMITH

24CV47282

DEFENDANT'S MOTION TO STRIKE

Plaintiffs Michael Steven Freeman, Sr. and Janice Marie Freeman as Trustees of the Michael Steven Freeman Sr. and Janice Marie Freeman Revocable Trust, and Michael Steven Freeman, Jr. ("Plaintiffs") filed their Complaint to quiet title against Defendant Lyle Smith ("Defendant"). Now before the Court is Defendant's Motion to Strike.

I. Factual Background

Plaintiffs are the owners of real property located at 12168 Sheep Ranch Road in Calaveras County ("Freeman Property"). Defendant is the owner of real property located at 13000 Sheep Ranch Road in Calaveras County ("Smith Property"). The Freeman Property is situated adjacent to and northeasterly of the Smith Property. Sheep Ranch Road is a public road.

Ingress and egress to both the Freeman Property and the Smith Property is by way of a private road ("Road") that intersects Sheep Ranch Road. (Complaint ¶ 9.) The Road is recorded as a 50 foot wide road and public utility easement. (*Id.* ¶ 10.) The Road leaves its intersection at Sheep Ranch Road, winds towards the Smith Property, and then continues to the Freeman Property. (*Id.* ¶ 9.)

Plaintiffs have brought the instant action to ensure that they can have continued use of the Road and electric power lines and panels.

II. Legal Standard

Code of Civil procedure section 435(b)(1) provides that "any party within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof..." Thereafter the court may, upon motion or at its own discretion:

- a) Strike out any irrelevant, false, or improper matter inserted in the pleading;
- b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or any order of the court.

(Code Civ. Proc. § 436.)

The grounds for a motion to strike are limited to matters appearing on the face of the challenged pleading or matters of which judicial notice may be taken. (Code Civ. Proc. §437(a).) A court may “strike false, i.e., untrue, matters contained in a pleading whenever their falsity or untruthfulness is revealed by facts which are judicially noticed.” (*Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 21.)

III. Discussion

Defendant moves to strike Paragraph 15 as false, and portions of Paragraph 16 as irrelevant. As to both paragraphs, Defendant takes issue with Plaintiffs’ statement that the Road is the “sole means of ingress and egress to the Freeman Property by vehicle from a public road.” (Paragraphs 15, 16.)

Defendant’s argument appears to be that the statement is false because the Plaintiffs’ deed references an “existing road” which provided the ingress and egress and that this road is different than the Road. Thus, according to Defendant, there must be some other roadway available because it is mentioned in the grant deed. Defendant has offered no evidence, only argument. Defendant’s argument does not in any way prove the falsity of Plaintiff’s allegation that currently the “sole means of ingress and egress” is via the Road.

Accordingly, Defendant’s motion to strike is **DENIED**.

The Clerk shall provide notice of the Ruling forthwith. Plaintiffs to prepare a formal Order conforming to this Ruling pursuant to Rule 3.1312.

SANTELICES v TURNER, et al

24CV47361

DEFENDANT TURNER and FOUNTAINS' DISCOVERY MOTIONS

This civil action stems from a dispute over the destruction and burning of several trees on real property owned by Plaintiff Cynthia Santelices ("Plaintiff") by Defendants Dolores Turner ("Turner"), Kristeen B. Fountain ("Fountain"), Josh Noble ("Noble") and Noble Tree Service (collectively "Defendants".) Turner and Fountain filed a Cross-Complaint against Plaintiff and Noble and Noble Tree Service.

Before the Court are Defendants Turner and Fountain's four separate motions to compel discovery which ask the Court to: 1) deem admitted the truth of facts in the Request for Admissions ("RFA"), 2) compel answers to Requests for Production of Documents ("RPDs"), 3) compel responses to form interrogatories ("Form Interrogatories") and) compel responses to special interrogatories ("Special Interrogatories") (collectively "Discovery"), and 5) impose sanctions on Plaintiff.

For the reasons set forth below, the matter is continued for three weeks while the parties attempt informal resolution of this dispute.

I. Factual and Procedural Background

A. Background Facts

Plaintiff is the owner of a ten-acre parcel of real property in Calaveras County with Assessor's Parcel Number (APN) #004-006-010-000 ("Property"). (FAC ¶ 6.); the neighboring property is located at 200 Miwuk Court in West Point and is co-owned by Turner and Fountain.

In October 2020, Defendants engaged in the destruction of a significant 48-inch diameter oak tree standing 40 feet tall which fell across what the Plaintiff then believed was the border of her property. (FAC ¶ 7.) In March 2022, Plaintiff observed that the entire neighboring property had been clear-cut and burned and that the fire had encroached beyond the then known boundary, onto her property. (FAC ¶ 8.) On June 29, 2022, Plaintiff confronted Noble about the fire damage which Noble refused to address or remedy. (FAC ¶ 9.) After hiring a surveyor, Plaintiff learned that the land which had been cut and burned was in fact hers. (FAC ¶ 10.) Plaintiff thereafter employed an arborist who assessed the damages to the trees alone at over \$194,000.00. (FAC ¶ 11.)